
Case	Title / Nature of Case
02:00 PM	
24-CLJ-07152	SHAWNA NIROUMAND VS. COSTCO WHOLESALE CORPORATION
LINE 1	
SHAWNA NIROUMAND	PRO PER
COSTCO WHOLESALE	NATHANIEL L. DUNN

PLAINTIFF: SHAWNA NIROUMAND'S MOTION FOR A NEW TRIAL

TENTATIVE RULING:

Plaintiff Shawna Niroumand's Motion for a New Trial is DENIED, as follows:

Defendant's objections to exhibits A, B, C, and E to Plaintiff's declaration in support of her Motion are SUSTAINED.

A motion for a new trial is appropriate following an order granting summary judgment. (Code Civ. Proc. section 687; *Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 868.) In this case, Defendant moved for summary judgment and the initial hearing was continued for discovery to be done. (December 15, 2025 Minute Order.) The continued hearing was held on June 8, 2026, at which time no additional documents had been filed with respect to the motion, and Defendant's Motion for Summary Judgment was granted. (June 8, 2026 Minute Order.) Plaintiff here argues that the summary judgment should be vacated and a new trial should be granted pursuant to Code Civ. Proc. section 657 based on accident or surprise which ordinary prudence could not guard against, newly discovered evidence, insufficiency of the evidence to justify the Court's ruling, error in law, and inadequate damages.

Accident or Surprise

A decision may be modified or vacated based on accident or surprise, which ordinary prudence could not have guarded against. (Code Civ. Proc. section 657 subd. (3).) Plaintiff argues that "the Appellate Court Clerk" had promised to transmit case notifications relating to Plaintiff's writ of mandate electronically, and that "[t]he total absence of the promised electronic notification, coupled with the anomalous late arrival of physical mail on May 21, 2026, created an unforeseen procedural trap that cut off Plaintiff's ability to timely act." (Motion at p. 2:10-13, 3:8-10.) However, Plaintiff has not presented admissible evidence that she was unable to provide in opposition to Defendant's Motion for Summary Judgment. She also has not shown that she took any steps to obtain discovery between the December 15, 2025 continuance and the June 8, 2026 hearing. Instead, she argues here that she did not request a continuance of the Motion for Summary Judgment, despite her Opposition filed November 19, 2025 stating "...based on all the above and Code of Civil Procedure Section 437c, Subdivision (h), motion for Summary Judgement of the Defendant should either be denied or offer the plaintiff continuance in order to obtain discovery." (Plaintiff's November 19, 2025 "Opposition to Summary Judgment Filed by the Defendant's Lawyer" at p. 2:18-20.)

Most important, the Minute Order from the December 15, 2026 Hearing where Plaintiff's request for a continuance of the Motion for Summary Judgment was granted clearly indicates that Plaintiff was present and had actual notice of June 8, 2026 Hearing, which is further supported by the fact that she actually

appeared on June 8, 2026. She therefore has not demonstrated accident or surprise which ordinary prudence could not have guarded against.

Newly Discovered Evidence

A decision may be modified or vacated based on newly discovered evidence, material for the party making the application, which the party could not, with reasonable diligence, have discovered and produced at the trial. (Code Civ. Proc. section 657 subd. (4).) Here, Plaintiff has presented no admissible evidence which substantiates Defendant Costco's liability, as she argues. (See Motion at p. 3:13-15.) Not only is the evidence she presented inadmissible (and also likely a sham inconsistent with her deposition testimony), it also was available to her long before the Motion was Summary Judgment was granted.

Insufficiency of Evidence

A decision may be modified or vacated based on insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law. (Code Civ. Proc. section 657 subd. (6).) Plaintiff argues that the evidence before the Court on summary judgment was insufficient for Defendant Costco to meet its initial burden of production. (Motion at p. 3:19-23.) The Court's decision was properly based on admissible evidence provided in declarations. Plaintiff has not shown that the evidence was insufficient.

Error in Law

A decision may be modified or vacated based on "[e]rror in law, occurring at the trial and excepted to by the party making the application." (Code Civ. Proc. section 657 subd. (7).) Plaintiff argues that "[t]he Court committed a reversible error in law by adopting the summary judgment order, failing to account for the procedural prejudice suffered by the self-represented Plaintiff, and denying Plaintiff her constitutional right to a trial on the merits." (Motion at p. 3:26-28.) Plaintiff has not demonstrated any procedural prejudice, and the Motion for Summary Judgment was properly granted.

Excessive or inadequate damages

Plaintiff's final argument is that she was insufficiently compensated in the action as a result of the granting of summary judgment in Defendant's favor, pointing to Code Civ. Proc. section 657 subd. (5) which allows a decision to be vacated based on excessive or inadequate damages. This subsection is not properly applied where Defendant is the prevailing party and Plaintiff is not entitled to damages in any amount.

Plaintiff has not demonstrated a statutory basis to vacate or modify the judgment entered following Defendant's Motion for Summary Judgment, and the Motion is accordingly DENIED.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CIV-03629 RICHARD FRESCHET VS. ALAN LIM, ET AL.

LINE 2

RICHARD FRESCHET
ALAN LIM

BRIAN J. MCSWEENEY
GEOFFREY W. STEELE

GEOFFREY WM. STEELE'S MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The unopposed motions of Geoffrey Wm. Steele to be relieved as counsel of record for defendants is denied without prejudice. Counsel has not provided a declaration indicating that the service address is current as required by California Rules of Court, rule 3.1362(d). The Steele declarations state that defendants were served by mail at their last known address. But, the stated method of confirming how the address is current, is confused and circular. The declaration checks the "other" box [3(b)(1)(d)], and then writes "Client has been served via electronic mail and at their last known address". That is not confirmation that either address is current as required by the rule.

It is also noted that there is a pending motion to compel in the case calendared for August 10 that Defendant has not responded to. While the Court acknowledges that this motion was filed a long time ago and that the motion to compel was filed after, it would appear that relieving counsel a week before the motion hearing with no indication that Defendants are aware of that hearing would be unfairly prejudicial.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.
